

CS31 – Incarcerated CHIP Beneficiaries



Statute: 2102(d), and 2110(b)(7) of the Act

INTRODUCTION

This state plan page (fillable PDF) applies only to states with separate child health assistance programs.

This state plan page must be completed by states which currently have or elect to provide coverage to Targeted Low-Income Children (TLIC).

In this state plan page, states provide information about their policies and procedures with regard to the treatment of TLIC who are or become incarcerated. Regulations at 42 C.F.R. § 457.310(c)(2)(i) apply the Medicaid definition for an “inmate of a public institution” under § 435.1010 to CHIP.¹

BACKGROUND

Section 2110(b)(2)(A) of the Social Security Act (the Act) and 42 CFR 457.310(c)(2)(i) specify that children who are inmates of a public institution are excluded from the definition of a TLIC and, therefore, generally ineligible for a separate CHIP. However, under amendments made by Section 5121 of the Consolidated Appropriations Act (CAA), 2023, effective January 1, 2025, section 2110(b)(7) of the Act provides limited exceptions to this exclusion: (1) children are no longer subject to the CHIP eligibility exclusion if they are within 30 days prior to their release and (2) at state option, children who are incarcerated while pending disposition of charges are no longer subject to the CHIP eligibility exclusion (and under this option are provided full CHIP state plan benefits during that time).

Additionally, effective January 1, 2025, section 2102(d)(1)(A) of the Act prohibits states from terminating otherwise eligible CHIP enrollees who are inmates of a public institution² and instead may suspend coverage during the enrollee’s incarceration. States that elect to suspend coverage may implement either a benefits or eligibility suspension (see page 3 below for further

¹ See [SHO #24-004](#) “Provision of Medicaid and CHIP Services to Incarcerated Youth” section “Background on Medicaid and CHIP Eligibility and Coverage During Incarceration” (pages 1-2) for more information on the definition of who is an inmate of a public institution.

² A correctional institution is considered a public institution and may include prisons, jails, detention facilities, or other penal settings (e.g., boot camps or wilderness camps). See [SHO #24-004](#) section “Carceral Settings” (page 13) for more information on applicable settings.

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information). States must also provide screening, diagnostic, and case management services available under the CHIP state plan in the 30 days prior to release in accordance with section 2102(d)(2) of the Act.

TECHNICAL GUIDANCE

PREREQUISITES:

State plan page CS7 - Targeted Low-Income Children must have been submitted prior to or concurrently with state plan page CS31.

Review Criteria

If state plan page CS7 is not approved, state plan page CS31 cannot be approved.

STATE PLAN PAGE CONTENT:

This state plan page is broken down into the following two sections:

1. Targeted Low-Income Children Who Become Incarcerated
2. Children Determined Eligible for CHIP While Incarcerated

Targeted-Low Income Children Who Become Incarcerated

This section includes assurances regarding eligibility and coverage for TLIC who become incarcerated and describes how the state operationalizes its policies. The state will also provide descriptions of any limitations to its implementation of the requirements under sections 2102(d) and 2110(b)(7) of the Act as applicable.

Under the first assurance, states confirm that they do not terminate eligibility for children enrolled in a separate CHIP because they became incarcerated.

Review Criteria

The state must check this box at the first assurance of this section or this state plan page cannot be approved.

During periods of incarceration, states may elect to either suspend a child's CHIP coverage or continue providing CHIP state plan services that are otherwise not provided by the carceral

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facility. The state will answer yes or no to the following question: “The state elects to suspend CHIP coverage for the duration of a child’s incarceration.”

Under a benefits suspension, the state must continue to complete annual renewals or act on certain types of changes in circumstances while the child is in a suspended status; however, under an eligibility suspension, completing annual renewals or acting on certain changes in circumstances is optional. For more detailed information about the suspension options, please see [SHO #24-0004](#) “Provision of Medicaid and CHIP Services to Incarcerated Youth” published on July 23, 2024, section “Additional Eligibility Changes for CHIP Under Section 5121 of the CAA, 2023” on pages 24 and 25.

Review Criteria

The state must select “yes” or “no” or this state plan cannot be approved.

- If the answer is yes, the state must then check off either ‘Benefits suspension’ or ‘Eligibility suspension’ or the state plan cannot be approved.

Under section 2102(d)(1)(B) of the Act, states are required to redetermine eligibility prior to a child’s release from a carceral setting. In order to meet this requirement, states must ensure that eligibility has been redetermined within the past 12 months prior to their release. For more information about these requirements please see [SHO #24-004](#), section “CHIP and Medicaid Redetermination Prior to Release” on page 25.

Under the second assurance, the state assures that it completes a redetermination of eligibility prior to a child’s release if the state has not completed a redetermination within the past 12 months.

Review Criteria

The state must check this box at the second assurance of this section or this state plan page cannot be approved.

Under the third assurance, states must assure that they are providing any screening, diagnostic, or case management services that are otherwise available to TLIC under the CHIP state plan (or waiver of such plan). States must provide these services to eligible children within the 30 days prior to release, within one week of release, or as soon as practicable after release.

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Review Criteria

The state must check this box at the third assurance of this section or this state plan page cannot be approved.

If there are limitations on a state’s ability to implement sections 2102(d) and 2110(b)(7) of the Act, states may be required to provide additional information. States should provide information in the text box indicating when it is not feasible to provide pre-release services prior to release. For example, states may describe why it is not feasible to provide pre-release services in certain types of facilities. States may also be asked to provide their internal section 5121 operational plan.³

Review Criteria

If there are limitations to implementing provisions of section 5121 of the CAA, 2023, the state must enter a description, such as the cause of the limitation, or this state plan page cannot be approved.

States have the option to provide the full array of services offered under the CHIP state plan to children who are inmates pending disposition of charges.

Review Criteria

If the state elects to provide CHIP coverage to eligible children pending disposition of charges, the state must check this box at the fourth assurance of this section or the state plan cannot be approved.

Children Determined Eligible For CHIP While Incarcerated

This section includes two assurances related to state actions if children are determined eligible for CHIP while they are incarcerated.

Under the first assurance, the state must assure that it will process any applications received from or on behalf of an incarcerated youth and make an eligibility determination for child health assistance to provide all services available under the CHIP state plan (or waiver of such plan) upon their release from the carceral facility.

³ See [SHO #24-004](#) section “Section 5121 of the CAA, 2023 Internal Operational Plan” (page 19) for more information on the state’s internal operations plan for Section 5121 of the CAA, 2023.

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Review Criteria

The state must check this box at the first assurance of this section or the state plan cannot be approved.

Under the second assurance, states must assure that children who are within 30 days of release and are found eligible for CHIP must be provided with screening, diagnostic, and case management services that are otherwise available under the CHIP state plan (or waiver of such plan).

Review Criteria

The state must check this box at the second assurance of this section or the state plan cannot be approved.